RECALLING Article 38(n) of the Convention on the Intp.rnati onal Maritime Organizat ion concerning the function of the Committee conferred upon it by international conventions for th e prevention and control of marine pollution, NOTING article 16 of the Internatio nal Convention for the Prevention o f pollution from Ships, 1913 (hereinafter referred t o as the "1913 convention") and article VI of the Protocol of 1978 relating to the 1973 Convention (hereinafter referred to as the "1978 Protocol") which together specify the a mendment procedure of the 1978 Protocol and confer upon th e appropriate body - and arti cle VI of the Protocol of 1978 relating to the 1973 Convention (hereinafter referred to as the "1978 Protocol") which together specify the amendment procedure of the 1978 Proto col and confer upon th e appropriate body of the Organization the function of considerin g and adopting amendment s to the 1973 Convention, as modified by the 1978 Protocol (MAR POL 73/78), NOTING FURTHER reso lution MEPC.55(33) by which the Committee adopted amendm ents to the International Code for the Construction and Equipment of Ships Carrying Dang erous Chemicals in Bulk (IBC Code), HAVING CONSIDERED, at its thirt y- third session, am endments to Annex II of HARPOL 73/78 and appendices II and III thereof proposed by the S ub-Committee on Bulk Chemicals at its twen ty-fir st session and c irculat ed in accorda nce with article 16(2}(a) of the 1973 Conventi on, 1.

ADOPTS in accordance amendments to Annex I I of texts of t hese amendments with article 160)(d) of the 1973 Conventio n MARPOL 73/18 and appendices II and III thereof.

the are set out in the annex t o the present resolution; 2.

DETERMINES, in accordance with article l6(2)(f)(iiil of th e - texts of t hese amendment s with article 160)(d) of the 1973 Conventio n MARPOL 73/18 and appendices II and III th ereof.

the are set out in the annex t o the present resolution; 2.

DETERMINES, in accordance with article l6(2)(f)(iiil of th e 1973 Convention that the am endments shall be deemed to ha ve been accepted on the date on which the conditions for the entry into force of th e amendments to the IRC Code adopted by the Committee by reso lution HEPC.55(33) are met, unless , prior to that date, not less than one third of the Parties or the Parties , the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchsnt fleet, have communicated to the Organization their objections to the amendments; 3.

INVITES the Parties to note that.

in accordance with article l6(2)(g)(ii) of the 197